

and overseas, and generally to watch over the interests of producers, distributors, retailers and users of cycle goods. The Association is a certified trade union, and members, who must be retail cycle dealers selling direct to the public, number some 4,800. They must have adequate premises, carry a representative stock and provide servicing facilities. 75 per cent. of the cycle dealers in the United Kingdom are members.

153. The N.A.C.T. supports price maintenance, which it considers necessary to protect the cycle dealers' standard of living, and its rules authorise it to operate a stop list, but since this is done, when necessary, by the C.T.U., the power has never been used. The N.A.C.T. believes that cycle tyres should be distributed only by "genuine cycle dealers", and has endeavoured to persuade the T.M.C. to establish a register of cycle dealers. These efforts have been unsuccessful, but the definition of a cycle tyre trader adopted by the T.M.C. in 1946 follows very closely the qualifications for membership of the N.A.C.T.

CHAPTER 8. THE TYRE TRADE JOINT COMMITTEE

154. The T.T.J.C. originated (with a different name) early in 1943 as an informal committee of tyre manufacturers and representatives of the M.A.A., the M.F.A., the N.T.D.A. and the S.M.T.A. to consider "terms and trading in the post-war period". A draft plan prepared by the T.M.C. was considered, and the Committee was reconstituted in December, 1943, as the Tyre Trade Joint Committee, to formulate and operate an agreed plan of distribution for car and giant tyres. A formal constitution was adopted in December, 1945. This was revised in 1948 and has since remained unchanged. A copy of the current constitution is given at Appendix 5.

155. As stated in paragraph 125, the T.T.J.C. consists of thirteen members: seven from the T.M.C., two from the M.F.A. (one representing tyre factors and one general motor factors) and one each from the M.A.A., the N.T.D.A., the S.M.T.A. and the Vehicle Distribution and Service Section of the S.M.M.T. The Chairman, who has a casting or second vote, has always been, at the request of the distributive organisations, a T.M.C. member. The Committee's income is derived from registration fees and receipts from Register sales. Deficits in expenses are met in equal proportions by the T.M.C. and the distributive associations, the latter contributing in proportion to their membership. The Secretary of the T.M.C. is also the Secretary of the T.T.J.C.

156. The main work of the T.T.J.C., since the Tyre Plan was introduced in June, 1946, has been to consider and approve the changes introduced in the Plan from year to year. In most cases these have originated with the T.M.C., though the distributive associations have frequently submitted individual proposals and expressed criticism of changes under consideration as being against the interests of their members. In general, since the T.M.C. are in the majority on the Committee and the distributive associations are often divided on points of policy, agreement has been reached, "in the interests of harmony and of the Plan", on the lines put forward by the T.M.C. The details of the Tyre Plan and the changes introduced from 1946 to 1953 are dealt with in Chapter 11, III.

157. The provisions of the Plan are embodied each year in the Rules of the Tyre Trade Register. Trade terms for car and giant tyres are limited to traders on this Register who have satisfied the qualifying conditions for registration and undertaken to comply with the rules. The Register is

operated by a Sub-Committee of the T.T.J.C., on which only T.M.C. members are represented. This Sub-Committee controls and co-ordinates the work of seven Regional Panels, on each of which are representatives of both the T.M.C. and the distributive associations. The Panels deal with all applications for registration; they also report on breaches of rules and make recommendations as to the action to be taken. The Register Sub-Committee hears all appeals against Panel decisions.

158. Disciplinary action against traders for any breach of rules, except price cutting, is taken by the T.T.J.C., on the recommendation of the Register Sub-Committee. Such action has taken the form of removal of the trader from the Register or, in the period when traders were registered in various classes, of relegation to a lower class. We are told that, since 1948, 671 names have been removed for failure to comply with the requirements of the rules about the character of the trader's business, "mainly because the nature of the business of the traders concerned has changed since registration", and that about 120 names have been removed each year for failure to comply with the rule which limits the value of tyres which may be used in connection with a user business to 25 per cent. of purchases on trade terms.* Price cutting offences are dealt with by the B.M.T.A., who maintain close liaison with the T.T.J.C. Since 1950 the B.M.T.A. have submitted monthly reports to the T.T.J.C. showing the number of tyre cases on hand, the number settled and the action taken.†

159. From 1943 to 1946 the T.T.J.C. was in close touch with the Retread Manufacturers Association on the question whether remoulds made by R.M.A. members should be covered by the Plan, and whether the R.M.A. should be represented on the T.T.J.C. When agreement proved impossible, it was arranged that the R.M.A. President should be invited to attend meetings of the T.T.J.C. when questions directly affecting R.M.A. members were being discussed.

160. The T.T.J.C. has also considered, on several occasions, applications for representation from the National Association of Tyre Specialists, which was set up in 1942 to protect the interests of traders who were not appointed as Authorised Tyre Dealers under Tyre Control. Its membership is now small and overlaps to some extent that of the N.T.D.A. These applications have always been refused on the ground that the current membership of the T.T.J.C. provides adequate representation of the tyre distributive trade.

* See paragraph 250.

† See paragraphs 223 and 236.